

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.20507 of 2022

Tariq Iqbal

V/S

*Election Commission of Pakistan
and others*

J U D G M E N T

Date of hearing	18.04.2022 and 28.04.2022
Petitioner(s) by	Mr. Mubeen Uddin Qazi, ASC with Ch. Tahir Mahmood and Ahmad Sardar Khan, Advocates in this petition and W.P.No.24862 of 2022. Syed Tassadaq Mustafa Naqvi and Syed Tassadaq Murtaza Naqvi, Advocates in W.P.No.26439 of 2022. Mr. Zohaib Ali Chishti, Advocate in W.P.No.24200 of 2022. M/s Sardar Akbar Ali Dogar and Sardar Daud Aslam Dogar, Advocates in W.P.No.24654 of 2022. Rana Nadeem Haider, Advocate in W.P.No.26801 of 2022. Mr. Mudassir Abbas Maghiana, Advocate in W.P.No.26163 of 2022. M/s Khawar Mehmood Khatana and Kiwan Hassan Khatana, Advocates in W.P.No.25192 of 2022. Rana M. Arshad Khan, Advocate in W.P.No.25337 of 2022. Mr. Sajjad Ahmed Malik, Advocate in W.P.No.24286 of 2022. Rai Usman Ahmad, Advocate in W.P.No.24434 of 2022. Mian Arshad Ali Mahar, Advocate in W.P.No.25166 of 2022. Mr. Muhammad Azam Zafar, Advocate in W.P.No.24582 of 2022. Mr. Muhammad Tariq Basheer Awan, Advocate in W.P.No.24886 of 2022. M/s Muhammad Ehsan Bhatti and Muhammad Azeem Altaf Bajwa,

	Advocates in W.P.No.25287 of 2022. M/s Muhammad Ehsan Bhatti and Muhammad Azeem Altaf Bajwa, Advocates in W.P.No.25288 of 2022. Rana Abdul Sattar Khan, Advocate in W.P.No.24945 of 2022. M/s Muhammad Ehsan Bhatti and Muhammad Azeem Altaf Bajwa, Advocates in W.P.No.25296 of 2022. M/s Ch. Rab Nawaz, Muhammad Athar Aftab and Qasim Zia Ranjha, Advocates in W.P.No.24560 of 2022. M/s Muhammad Ehsan Bhatti and Muhammad Azeem Altaf Bajwa, Advocates in W.P.No.25340 of 2022. M/s Muhammad Ehsan Bhatti and Muhammad Azeem Altaf Bajwa, Advocates in W.P.No.25374 of 2022. M/s M. Javaid Iqbal Qureshi and Waqas Arfaq Sandhu, Advocates in W.P.No.25035 of 2022. Rai Wali Muhammad Kharal, Advocate in W.P.No.25308 of 2022. Mr. M. Shabir Hussain, Advocate in W.P.No.24647 of 2022. Mian Javaid Zafar, Advocate in W.P.No.25090 of 2022. Mian Arshad Ali Mahaar, Advocate in W.P.No.25175 of 2022. Rana Sufyan Mahmood, Advocate in W.P.No.25225 of 2022. Mian Mujahid Hussain, Advocate in W.P.No.24925 of 2022. Ch. Iqbal Ahmad Khan Dhengal, Advocate in W.P.No.25115 of 2022. M/s Mujataba Hassan Tatla and Aftab Ahmed Toor, Advocates in W.P.No.26307 of 2022. Rana Abdul Sattar Khan, Advocate in W.P.No.26317 of 2022. Mr. Mudassir Abbas Maghiana, Advocate in W.P.No.26501 of 2022. Mr. Luqman Ayub, Advocate in W.P.No.26406 of 2022. Rana Shahid Mahmood, Advocate in W.P.No.26628 of 2022.
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	Ch. Imtiaz Ahmed Kamboh, Advocate in W.P.No.21859 of 2022. Rana Taimoor, Advocate in W.P.No.25454 of 2022. Mr. Imran Ahmed Malik, Advocate in W.P.No.25617 of 2022, W.P.No.25606 of 2022 and W.P.No.25622 of 2022. Mr. Muzamil Hussain Virk, Advocate in W.P.No.25539 of 2022. Abdul Khaliq Safrani, Advocate in W.P.No.25767 of 2022. Mian Shahid Amin, Advocate in W.P.No.25559 of 2022. Mr. Waqas Qadeer Shaikh, Advocate in W.P.No.19150 of 2022 and Criminal Original No.24552-W of 2022. Malik Hafiz Muhammad Arshad, Advocate in W.P.No.18894 of 2022. Mr. Muhammad Saleem Mirza, Advocate in W.P.No.19348 of 2022. Sardar Akbar Ali Dogar, Advocate in W.P.No.20756 of 2022. Mr. Zeeshan Ghani Sulehria, Advocate in W.P.No.21052 of 2022. Rana Shahid Mahmood, Advocate in W.P.No.22657 of 2022. Malik Saleem Iqbal Awan, Advocate in W.P.No.22729 of 2022. Mr. Arshad Mahmood Asim Warraich, Advocate in W.P.No.23503 of 2022 and W.P.No.23497 of 2022. Ch. Awais Ahmed, Advocate in W.P.No.23889 of 2022 and 23900 of 2022. Ch. Muhammad Sarwar, Advocate in W.P.No.25032 of 2022. Mr. Shahid Mahmood Aleem, Advocate in W.P.No.25026 of 2022. Mr. Kashif Ali Chaudhary, Advocate in W.P.No.25662 of 2022. Mian Muhammad Ismail Thaheem, Advocate in W.P.No.25635 of 2022 and W.P.No.25629 of 2022. Mr. Shahrukh Mehboob, Advocate in W.P.No.21253 of 2022. Mr. Rizwan Mohsin Joya, Advocate in W.P.No.25671 of 2022.
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	Mr. Maqbool Hussain Sheikh, Advocate in W.P.No.25529 of 2022.
Respondent(s) by	Barrister Ahmad Pervaiz, ASC/Legal Advisor, Barrister Saffi-ul-Hassan and Barrister Ahtasham Mukhtar, Advocates with Khurram Shahzad, ADG Legal, Ch. Umar Hayat, Director Legal, Hafiz Adeel Ashraf and Hafiz Muhammad Bilal Azhar, Legal Assistants, Imran Arif Ranjha, Legal Advisor and Waqar Ahmad, E.O. for Election Commission of Pakistan. Barrister Umair Khan Niazi, Additional Advocate General. Ms. Sadia Malik, Assistant Attorney General. Mr. Waqar Saeed Khan, Assistant Advocate General.

JAWAD HASSAN, J. This judgment will decide this petition alongwith connected petitions, list of which is attached as Annex-A, where interpretation of the basic provisions of the Election Act, 2017 (the “*Act*”) and the Elections Rules, 2017 (the “*Rules*”) along with the relevant provisions which deal with the local government elections have been sought under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “*Constitution*”).

2. There are various petitions filed before this Court requiring determination of the constituencies on delimitation conducted by the Election Commission of Pakistan (the “*ECP*”) through the Delimitation Committee (the “*Committee*”) and Delimitation Authority (the “*Authority*”). The common point in all the petitions is that against the decision of the Committee and the Authority, no remedy is further provided to the Petitioners.

I. BRIEF BACKGROUND

3. The Petitioners have approached this Court against the decision of the Committee and the Authority regarding delimitation of constituencies. The version of the Petitioners is that the election process was started under the Act and the Rules but the Authority, while deciding their objections, did not consider the principles of

constituency as given under Chapter 3 read with Sections 17 to 20 of the Act. It is claimed by the Petitioners that the entire mechanism provided under the Act and the Rules has not been followed with regard to delimitation of their constituencies falling under the local governments as per Chapter XIII, Section 219 to 223 of the Act. The basic point raised by all the Petitioners, is that whole exercise was done without affording an opportunity to file any appeal against the decision of the Authority and as such there is no forum available except filing of these constitutional petitions. It is to be noted that the Court will only deal with the issue regarding election of local government where the Petitioners have no alternate remedy available to them under the Act and the Rules against the decision of the Authority and will not look into the provisions of the Punjab Local Government Ordinance, 2021 and the Rules framed thereunder as that matter is already pending before the Special Bench constituted to deal with it.

II. PETITIONERS ARGUMENTS

i. Arguments of Mr. Mubeen ud Din Qazi, ASC

4. Learned counsel for the Petitioners states that the issue in this case relates to delimitation of the local government and the authorities prescribed under the provisions of the Constitution therefore, their case squarely attracts the Preamble of the Constitution which clearly stated that the State shall exercise its powers and authority through chosen representatives of the people and the principles of democracy shall be fully observed. He stated that wording used in the preamble has to be read with Article 17 of the Constitution which includes the local government and other authorities in Pakistan. He further stated that the issue in hand relates to Article 17 read with Articles 32, 33 and 218(3) of the Constitution. He further stated that under Article 17 of the Constitution, right to freedom of association was provided and under Section 37(i) of the Constitution, the State shall decentralise the Government administration so as to facilitate expeditious disposal of its business to meet the convenience and requirements of the public.

He has also referred to Article 32 of the Constitution which deals with the promotions of local government institutions. Lastly, he has referred to Article 140A of the Constitution by stating that the ECP is responsible to conduct elections of the representatives of the local governments.

ii. Arguments of Syed Tassadaq Mustafa Naqvi, Advocate

5. States that there is no alternate remedy available to the Petitioners because the objections decided by the Authority are not in accordance with the principles of delimitation as provided under Chapter 3, Section 20 of the Act.

iii. Mian Muhammad Ismail Thaheem, Advocate

6. States that the objections decided by the Authority do not mentions solid reasons under Section 22 of the Act and the matter needs to be remanded to the ECP for its decision afresh.

iv. Malik Hafiz Muhammad Arshad, Advocate

7. He argued that discriminatory treatment has been meted out with the Petitioner by the Authority as objections with regard to adjustment of Block raised by other person of same vicinity have been accepted while that of Petitioner has been refused as such it is clear violation of Article 25 of the Constitution.

III. RESPONDENTS ARGUMENTS

8. Barrister Ahmed Pervaiz, ASC objected to maintainability of the petitions on the ground that the decision passed by the Authority involves disputed questions of facts and that too, the Petitioners have no locus standi to file this petition.

9. Ch. Umer Hayat, Director Legal, ECP objected qua maintainability of the petition by stating that the Petitioners have been dealt with the procedure provided under Section 223 of the Act which deals with the objections to be dealt with by the Authority.

MOOT POINTS

10. From the arguments advanced by the parties, the following moot points have arisen.

- I. Whether the constitutional jurisdiction of this Court to judicially review the orders of the Delimitation Officer and Delimitation Authority is barred?**
- II. Whether the objections raised before the Authority against the decision of the Committee regarding delimitation of constituencies of local bodies were decided as per law?**
- III. Whether the ECP can review the correctness of the delimitation orders/notifications, if non-availability of other remedy provided under the Act?**

It is to be noted that whenever important constitutional moot points are raised in a constitutional petition, the Courts always framed moot points in order to settle them strictly under Article 201 of the Constitution. This Court, has recently discussed in details regarding framing of moot points and settling them in “MUHAMMAD UMAIS Versus RAWALPINDI CANTONMENT BOARD etc” (PLD 2022 Lahore 148) by holding that

“After framing of issues on constitutional moot points, this Court has narrowed down the law points and determined the fundamental rights of the Petitioner but while rendering judgment, the constitutional petition filed under Article 199 of the Constitution, if the writ petition is admitted for regular hearing, and after perusing the record from the report and parawise comments, the Court has to render a decision strictly as per Articles 199 and 201 of the Constitution. The decision or order could be a judgment or an order passed on the constitutional petition filed under Article 199 of the Constitution but those decisions are made under the established law of precedent under Article 201 of the Constitution, to have a binding effect and its principles have to be followed later. Article 201 of the Constitution states that a decision of High Court if (i) it decides a question of law or is (ii) based upon or (iii) enunciates a principle of law be binding on subordinate Courts. In this case, writ petition was filed on 21.04.2021 and after hearing the parties on 28.04.2021, the Court while admitting the writ petition directed the parties to file written statement. Thereafter, written statement was filed by the Respondents and perused by this Court, hence, before proceedings further, the Court framed moot points in order to render a judgment under

Article 201 of the Constitution. It is a settled norm that the decision on a question of law can only be made if question of law is framed and highlighted from the pleadings. In this case the Court on 02.06.2021 framed the constitutional moot points, mentioned above, in order to render a judgment, while keeping in mind the principles of law already established by the Superior Court, relied by both the counsel for the parties, then passed its decision on it to be called a decision or a judgment. Accordingly, the judgment then passed will consists of ratio decidendi, facts, arguments of the parties, moot points involved, and stare decisis and obiter dicta. The Constitution clearly empowers the Courts in Pakistan to render on these parameters regarding the question of law or based on question enunciated a principle of law. As every judgment of the Supreme Court is binding on all Courts under Article 189 of the Constitution, the same words are used in Article 201 of the Constitution but subject to Article 189 to follow its principle for consistency”.

MOOT POINT NO.1

I. Whether the constitutional jurisdiction of this Court to judicially review the orders of the Delimitation Officer and Delimitation Authority is barred?

11. Mr. Mubeen ud Din Qazi, ASC argues that the point involve in this case can be interfered with by this Court as it has jurisdiction to judicially review the orders passed by the Authority. On the other hand, Barrister Ahmed Pervaiz, ASC stated that the Petitioners have been dealt with by the Authority as per procedure provided under the Act. It is a settled judicial norm with strong principles of the Supreme Court in a chain of judgments that Courts jealously guard their jurisdiction. The constitutional courts do not, with ease, abdicate or surrender their jurisdiction to exercise judicial power if the Court is of the view that the order under challenge is illegal and outside the four corners of the law and no other alternate or special remedy has been prescribed by law. There would be no decision within the meaning of the statute if there were anything done contrary to the essence of justice. Reliance is placed on “BEGUM SYEDA AZRA MASOOD VERSUS BEGUM NOSHABA MOEEN AND OTHERS”

(2007 SCMR 914), “YOUSAF ALI VERSUS MUHAMMAD ASLAM ZIA And 2 Others” (PLD 1958 SC 104). The superior courts have assumed jurisdiction if the order impugned is without jurisdiction, coram-non-judice or mala fide. A chain of judicial pronouncements reiterate this view: THE STATE VERSUS ZIA-UR-REHMAN AND OTHERS (PLD 1973 SC 49), MR. FAZLUL QUADER CHOWDHRY AND OTHERS VERSUS MR. MUHAMMAD ABDUL HAQUE (PLD 1963 SC 486), THE FEDERATION OF PAKISTAN THROUGH THE SECRETARY, ESTABLISHMENT DIVISION, GOVERNMENT OF PAKISTAN RAWALPINDI VERSUS SAEED AHMAD KHAN AND OTHERS (PLD 1974 SC 151), FEDERATION OF PAKISTAN AND ANOTHER VERSUS MALIK GHULAM MUSTAFA KHAR (PLD 1989 SC 26), PIR SABIR SHAH VERSUS FEDERATION OF PAKISTAN AND OTHERS (PLD 1994 SC 738), MUNIR HUSSAIN BHATTI, ADVOCATE AND OTHERS VERSUS FEDERATION OF PAKISTAN AND ANOTHER (PLD 2011 SC 407). In view of aforementioned judicial pronouncements, the constitutional jurisdiction of this Court to judicially review the orders, notifications and the acts of the executive i.e. the Delimitation Authority and Delimitation Committee in this case is not barred.

MOOT POINT NO.2

II. Whether the objections raised before the Authority against the decision of the Committee regarding delimitation of constituencies of local bodies were decided as per law?

12. Syed Tassadaq Mustafa Naqvi and Syed Tassadaq Murtaza Naqvi, Advocates argue that the Petitioners are remediless as their objections before the Authority were not dealt with as per law and principles provided under Section 20 of the Act. In response, Barrister Ahmed Pervaiz, ASC stated that the Authority has decided the objection as per law. Before deciding this moot point, it is expedient to understand the importance of delimitation in democracy. Democracy is a rich and complex normative concept. It rests on two

bases. The first is the sovereignty of the people. This sovereignty is exercised in free elections, held on a regular basis, in which the people choose their representatives, who in turn represent their views. The growing electoral jurisprudence shows that the right to vote actually translates into a more potent and substantial right to equal voting power. The electoral process other than ensuring fair and free polls, is to ensure that the weight of the vote of a citizen is not diluted or discriminated prior to the polls during delimitation of constituencies. This Court in “JAMSHED IQBAL CHEEMA Versus ELECTION APPELLATE TRIBUNAL etc” (2022 CLC 463) has already elaborated the principles of democracy with reference to preamble of the Constitution by holding as under:

“As the preamble of the Constitution specifically states that (i) principles of democracy shall be fully observed, (ii) dedicated to the preservation of democracy achieved by the unrelenting struggle of the people against oppression and tyranny (iii) the State shall exercise its powers and authority through the chosen representatives of the people. While examining the relevant provisions of Section 60 and 62 of the Act, principles enunciated by the Hon’ble Supreme Court of Pakistan has been followed which are binding on this Court under Article 189 of the Constitution. The preamble of the Election Act, 2017 read with Election Rules, 2017, clearly state that an Act to amend, consolidate and unify laws relating to the conduct of elections”.

Legal Pathology of Delimitation

13. It is settled principle that delimitation is a vital and indispensable milestone in the electoral process as it defines and fashions the strength and weight of a vote. Fair and transparent delimitation of constituencies is pivotal for holding honest, fair and just elections. The central focus of any fair and just electoral system is to ensure that the right to vote is properly guarded against the scourge of vote dilution or discrimination during the process of delimitation. Any electoral system must, therefore, be designed to protect the right to vote. Any step or stage in the process which has a

bearing on the right to vote is an indispensable part of electoral process.

14. Under the settled jurisprudence developed by the Hon'ble Supreme Court of Pakistan, it is unequivocal that delimitation, means the demarcation of the boundaries of an electoral constituency in order to ensure fair, just and proportional representation of the people in the elections. The basic object of delimitation is to secure, so far as practicable, equal representation for equal segments of the population in legislative bodies. This is usually done with regard to stated constraints of administrative convenience, contiguity, geographical, and communication factors; and unstated influences of party-political advantage. The Principles of delimitation include having regard to distribution of population in geographically compact areas, existing boundaries of administrative units, facilities of communication and public convenience and other cogent factors to ensure homogeneity in the creation of constituencies. The other equally important aim of delimitation is to divide the geographic areas into territorial constituencies so fairly that no party or candidate may legitimately have a grievance that there has been "gerrymandering" of constituencies in favour of or against the interests of any particular party or candidate. Suggesting that the right to cast a ballot is meaningless if that ballot is undervalued relative to a ballot cast by a voter in a less populated district. Gerrymandering is "drawing of district boundaries so as to favour one's own chances in future elections. The strategies for gerrymandering have been characterized as 'stacking', 'packing', and 'cracking', each of which seeks to minimize the influence of those likely to vote for opponents". The process of delimitation has to ensure that the voting equality is not disturbed and the vote of one citizen must in no manner be less than the vote of another citizen. Other than population parity, geographical compactness, the homogeneity of interest of the community need to be factored in setting the parameters of delimitation. Reliance placed on "ARSHAD MEHMOOD Versus

COMMISSIONER/DELIMITATION AUTHORITY, GUJRANAWALA
And Others” (PLD 2014 Lahore 221).

Legal Anatomy of Delimitation

15. By examining the relevant provisions of the Act, Rules it is very clear that delimitation is not a mere drawing of boundaries with a stroke of pen. It is a judicious exercise of delineating electoral areas, vigilantly guarding against any possible fear of vote dilution, disenfranchisement or corrupt practices. Unfair or partisan delineation can lead to skewed results, tarnishing electoral integrity. The foundations or the rules of the game for a fair and just election are laid down at the time of delimitation of the constituencies. The delimitation must be a neutral exercise, conducted by a neutral body. Any partisan political intervention and drawing up of political constituencies under the dictates of the political party in power is bound to lead to gerrymandering and unjust political windfall, tarnishing the sanctity of elections and crippling the faith of an ordinary man in the system of democracy.

16. The heart of controversy involved in the instant cases is whether the Committee has rightfully delimited the constituencies as per the Act and the Rules and whether the objections raised against the decision of the Committee before the Authority were decided as per law.

17. In order to ensure free, fair and transparent elections as well as to guard against the corrupt and illegal practices, it is the duty of ECP to ensure that the delimitation is carried out strictly in accordance with the mandatory principles provided under section 10 and 11 of the Punjab Local Government Ordinance 2021 read with rule 4 of the Punjab Local Government (Delimitation of Neighborhood Councils and Village Councils) Rules 2022; Section 221 read with Section 20 of the Election Act 2017; Rule 17 of the Election Rules 2017; and read with Article 222(b) of the Constitution of Pakistan, 1973 i.e., territorial unity, facilities of communication and public convenience and other cognate factors to ensure

homogeneity in the creation of constituencies, uniformity of population/distribution of population in geographically compact areas, physical features, existing boundaries of administrative units.

18. The case of the Petitioners is that their objections were not dealt with properly and while passing the impugned orders/notifications, the Delimitation Committee as well as the Delimitation Authority neither conducted any independent enquiry or carried out any field visit, nor the relevant record was examined or evidence recorded, as required under the Act and the Rules made thereunder. Hence failed to exercise the power and authority vested in them under the law, rendering the whole exercise of final delimitation as well as the impugned order/ notifications, as null and void. Rule 21 of the Rules is of much importance which gives procedure of filing objections before the Authority. The Court has noticed that the order passed by the Authority was not in terms of parameters as set under Rule 21(2) and (4) of the Rules. The Rule 21(3) clearly envisages that the Authority has to decide objections after holding inquiries, summoning witnesses and recording of evidence. This Rule has to be read with Section 223(3) of the Act. Perusal of Section 223(3) with Rule 21(3) of the Rules makes it quite clear that the Authority has to decide the objections within thirty days after holding inquiries, summoning witnesses and recording of evidence. Although the Authority decided the objections but they are not in accordance with the Rule *ibid*. No justification or reasoning has been mentioned in the impugned order of Delimitation Authority. It is not a speaking order rather based on evasive grounds. It was incumbent upon the Authority to decide the objections of each objector separately on its own merits, but to its dismay it decided multifarious objections raised by petitioners evasively in a single order. Such an order is not sustainable under the law. The impugned order as well as the proceedings are also a gross violation of section 24-A of the General Clauses Act, 1897 which manifestly impresses upon the Authorities/public functionaries to decide the cases after

application of mind on the touchstone of reasonableness, which otherwise is lacking in the instant case. The Delimitation Authority while conducting the impugned delimitation, have failed to act reasonably, fairly and justly as required under section 24-A of General Clauses Act. Reliance is placed on FASIH-UD-DIN KHAN VERSUS GOVERNMENT OF PUNJAB (2010 SCMR 1778), CHAIRMAN, STATE LIFE INSURANCE CORPORATION VERSUS HAMAYUN IRFAN (2010 SCMR 1495) & UNITED WOOLLEN MILLS LTD. WORKERS' UNION VERSUS UNITED WOOLLEN MILLS LTD (2010 SCMR 1475).

MOOT POINT NO.3

III. Whether the ECP can review the correctness of the delimitation orders/notifications, if non-availability of other remedy provided under the Act?

19. Mr. Mubeen Uddin Qazi, ASC and Sardar Akbar Ali Dogar Advocates argued at length and stated that the Petitioners are remediless against the decision of the Authority, hence they have brought this petition before this Court with the stance that despite passing of orders by the Authority, the ECP, being regulator of the elections process, still have power of review of its order. This stance has strongly been controverted by Barrister Ahmed Pervaiz, ASC/Legal Advisor of ECP on the ground that the Petitioners have been dealt by the Authority made under the law hence there was no scope of review of order passed by the Authority. This point has to be examined by this Court in the light of relevant provisions of the Act and the Rules. The issue raised in these petitions is that no forum is provided under the Act after decision of objections of the Petitioners by the Authority. As the matter relates to delimitation of constituencies of local government therefore Court will examine the remedy of the Petitioners against the decision of the Authority under the Act, Rules and the Constitution.

20. The preamble of the Constitution states that the principles of democracy shall be fully observed and the State shall exercise its

powers and authority through the chosen representatives of the people. The local government and its elections by the ECP have been provided under Article 140-A of the Constitution which specifically states that each province, by law, establish a local government system and election of local government shall be held by the ECP. Since the issue in hand relates to delimitation of local government and this important aspect has to be seen with Article 4 of the Constitution. According to this Article, it is an inalienable right of every citizen to enjoy the protection of law and to be treated in accordance with law (the Act and the Rules) and no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law. Article 32 of the Constitution envisages that the State shall encourage local Government institutions composed of elected representatives of the areas concerned and in such institutions special representation will be given to peasants, workers and women. The word ‘elected representatives of the area concerned’ includes the representatives who are before this Court on the issue of delimitation of their constituencies. Article 37(i) of the Constitution demonstrates that the State shall decentralise the Government administration so as to facilitate expeditious disposal of its business to meet the convenience and requirements of the public. Article 222 of the Constitution provides for nature and scope of electoral laws and the Act and the Rules were made by the Provincial Assembly however, a close reading of Article 222(b) would indicate that it does not relate to delimitation of constituencies of National and Provincial Assemblies alone rather it is open-ended and construed harmoniously with the other relevant provisions of the Constitution, would include the making of appropriate laws by the Parliament for delimitation of constituencies for the local governments. Article 222(c) clearly gives an option that the preparation of electoral laws and determination of objections pertaining to electoral roles. The words ‘objections pertaining to electoral laws’ used under the referred Article give relevancy to the objections made by the voter against the decision of

Committee and the Authority. The Court is convinced of the fact that it is the Commission who prepared electoral roles under Article 219(a) of the Constitution which includes the electoral roles of local government to hold general elections. In order to hold general elections and to prepare electoral roles, the onus is on the Commission to provide an opportunity to deal with the objections raised therein. In this regard, Article 218 of the Constitution casts upon a duty on the Commission to ensure and conduct elections, justly, fairly and in accordance with law.

21. Under Section 22 of the Act, Chapter III referred by Section 221 of the Act gives the powers to the Commission to make amendment, alteration or modification in final list of constituencies as power given in Section 40 of the Act read with Section 58 of the Act. This means that in order to conduct fair elections in terms of Article 218(3) and 219 read with Article 222 of the Constitution, the Commission has the mandate and power to make such amendment, alteration or modification in order to avoid further complications and other things from time to time but that power has to be exercised within time and that too is subject to other legal requirements of factual disputes involved therein. When this point was confronted to Khuram Shahzad, ADG Legal, Ch. Umar Hayat, Director Legal appeared on behalf of ECP and stated that ECP has power to alter, amend or modify final list under the relevant provisions of the Act however, they could not satisfactorily replied however, learned legal advisor of ECP stated that although there are certain provisions under which the ECP can make amendment, alteration but these are not applicable in the case in hand. It is to be noted that under Section 22 of the Act, the Commission has the duty under Section 219 read with Section 218 of the Constitution to organize fair elections justly, fairly honestly in accordance with law. Section 22 of the Act starts with opening ‘notwithstanding anything contained in this Act’, which means that this power of the Commission can be exercised in three manners and modes i.e. (i) at any time but at least four months (ii) of

its own motion and for reasons to be recorded, make such amendments, alterations or modifications in the final list of constituencies. This means this power of his own motion or for reasons to be recorded but it is subject to Section 219 of the Act that is very relevant for this case because both Chapter III and Chapter XIII have cross reference for the reasons that the list of constituencies is prepared after the Commission receive, hear and consider representations. The concept of hearing and deciding the objections are provided under the Act and the Rules in true sense to comply with the requirement of the Constitution, as mentioned above by keeping in view Article 10-A of the Constitution which provides fundamental rights of fair trial and due process. Thus Section 22 of the Act explains that the Commission at any time, on his own motion or for the reasons to be recorded can alter, amend or modify the final list.

22. The election laws were made by the Parliament subject to Article 222 of the Constitution. The issue of delimitation of constituencies of local government can be looked into when we examine the preamble of the Act read with Section 2 of the Act which deals with the definitions including election programs and the voter. Under the Act, Commission was established under Chapter II but the issue in this case is the delimitation of the constituencies under Chapter III which deals with the Commission to delimit constituencies of the local government in terms of Section 19 and the principles of delimitation under Section 20 of the Act. In the case in hand, the issue relates to Chapter XIII, Conduct of Elections of Local Governments. Bare reading of Section 222(1) of the Act makes it quite clear that the Commission shall delimit constituencies regarding conduct of elections of the local government and when this Section is read with Section 219 of the Act, it is the Commission who can delimit the constituencies of local governments including the union councils, wards in a union council, a ward in a district council or ward in a municipal committee, as far as possible and subject to

necessary modifications, in accordance with Chapter III of this Act and the Rules. What is to be noted here is that the Commission has powers to delimit constituencies subject to law and in accordance with Chapter III of the Act and the Rules. Chapter III gives some principles of delimitation with certain clarities with Section 22 of the Act. Once the Committee is appointed by the Commission under Section 222 of the Act, the decision of the Committee is then further challenged before the Authority constituted under Section 223 of the Act and the Authority under Rule 21(3) of the Rules, decides the objections in terms of Section 223(3) of the Act within thirty days from the delimitation conducted by the Committee after holding inquiries, summoning witnesses and recording of evidence. Section 223(3) of the Act is reproduced hereunder:

223. Appointment of Delimitation Authority.—(1) *The Commission shall appoint from amongst its own officers or from the officers of the subordinate judiciary a Delimitation Authority for each district to hear and decide the objections against the delimitation carried out by the Delimitation Committee.*

(2) *An officer of the subordinate judiciary shall be appointed as Delimitation Authority in consultation with the Chief Justice of the High Court concerned.*

(3) *A voter may, within fifteen days of the delimitation of constituencies by the Delimitation Committee, file objections against the delimitation before the Delimitation Authority which shall decide the objections within thirty days from the date of delimitation of constituencies by the Delimitation Committee.*

23. From the perusal of above section, it is clear that the Authority decides the objections within thirty days from the date of delimitation of constituencies by the Committee. The word ‘decides’ means to decide as per law and for this purpose, Section 221 of the Act deals with delimitation of local government constituencies while Section 20 of the Act deals with principles of delimitation. The said section is reproduced hereunder:

20. Principles of delimitation.—(1) *All constituencies for general seats shall, as far as practicable, be delimited having regard to the distribution of population in geographically compact areas, physical features, existing boundaries of administrative units, facilities of communication and public convenience and other cognate factors to ensure homogeneity in the creation of constituencies.*

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- .
- (3) As far as possible, variation in population of constituencies of an Assembly or a local government shall not ordinarily exceed ten percent.
- (4) If the limit of ten percent under sub-section (3) is exceeded in an exceptional case, the Commission shall record reasons thereof in the delimitation order.

24. A bare reading of Article 218(3) of the Constitution makes it clear that the Election Commission is charged with the duty to 'organize' and 'conduct the election'. The language of the Article implies that the Election Commission is responsible not only for conducting the election itself, but also for making all necessary arrangements for the said purpose, prior to the Election Day. By conferring such responsibility on the Election Commission, the Constitution ensures that all activities both prior, and subsequent to Election Day, that are carried out in anticipation thereof, adhere to standards of justness and fairness and in accordance with law. Reliance is placed on “WORKERS 'PARTY PAKISTAN through Akhtar Hussain, Advocate, General Secretary and 6 others Versus FEDERATION OF PAKISTAN and 2 others” (PLD 2012 SC 681). In order to achieve the mandate of the Election Commission in terms of Art. 218(3) read with Art. 220 and other enabling provisions of the Constitution and the law, the Election Commission was required to take all available measures including utilizing technologies to fulfil the solemn constitutional duty to ensure that the election was conducted honestly, justly, fairly and in accordance with law and that corrupt practices were guarded against. Reliance is placed on “REFERENCE NO. 1 OF 2020” decided on 1st March, 2021 **(PLD 2021 Supreme Court 825)**.

25. While interpreting the words *conduct* and *organize* as appeared in Art. 218(3) of the Constitution the Honorable Supreme Court observed that the word *conduct* means 'to manage; direct; lead; have direction; carry on; regulate; do business' while the word *organize* means 'to establish or furnish with organs; to systematize; to put into working order; to arrange in order for the normal exercise of its

appropriate functions'. The process of delimitation of constituencies for an election was one of the important steps to organize and conduct elections because it was only with reference to a constituency that a candidate would exercise his right/option to contest and a voter would exercise his right to vote. The delimitation of constituencies of the Local Government was part of the process of organizing and holding elections honestly, justly and fairly which was the constitutional mandate of the ECP. Reliance is placed on "PROVINCE OF SINDH through Chief Secretary and others Versus M.Q.M. through Deputy Convener and others" (PLD 2014 Supreme Court 531). The expression "organizing and conducting elections" would seem to include the taking of all steps that might be deemed necessary for securing the return of the candidates from constituencies" (**Fundamental Law of Pakistan** by A.K.Brohi). This thought is echoed in a full bench judgment of this Court reported as "MUHAMMAD NAZIR HAKIM V. BUKHTIAR SAID MUHAMMAD AND THE CONTROLLING AUTHORITY, MONTGOMERY" (PLD 1962 Lahore 421).

26. While examining judgments of the Hon'ble Supreme Court of Pakistan, it is settled that fair elections would mean fair representation and delimitation of constituencies was a foundational step towards such end. One of the fundamental steps to hold fair elections is that the process of delimitation of constituencies should be carried out by a neutral and credible body. The delimitation of constituencies of the Local Government was part of the process of organizing and holding elections honestly, justly and fairly which was the constitutional mandate of the Election Commission and power to carry out such delimitation should vest with the Election Commission. Reliance is placed on "ELECTION COMMISSION OF PAKISTAN through Secretary Versus PROVINCE OF PUNJAB through Chief Secretary and others" (PLD 2014 Supreme Court 668).

27. As a sequel of afore discussion it can be safely inferred that the delimitation for Local Government Elections is the prerogative of

ECP. It is an integral and pivotal part of electoral process and falls exclusively under the constitutional role and obligation of ECP to organize and make necessary arrangements for holding local bodies elections. Admittedly, no appeal or remedy is provided against the order of the Delimitation Authority and mostly such decisions are considered to be final. However, it does not mean that petitioners are remedy-less. The ECP is the apex, independent and neutral constitutional authority to hold, organize and conduct elections in Pakistan. After Local Government elections have been recognized as constitutional elections (18th Constitutional Amendment (2010), the role of ECP fully extends to all the stages of the electoral system envisaged under the Act including preparation of electoral rolls and delimitation of constituencies as is the case with the other constitutional elections.

28. In light of aforementioned reasons all these petitions are allowed and the impugned orders of Delimitation Authority and the impugned Notifications issued by the Delimitation Officers are set aside. The ECP under provisions of the Act, Rules and the Constitution has the mandate to make amendments, alteration or modification in the final list of constituencies so, the remedy provided under Section 22 of the Act can be deemed to be made as representation to the ECP against the decision of the Authority. Therefore, all the petitions are referred to the ECP as representation against the decision of the Authority to decide it, as per law. The Petitioners shall appear before the ECP on 14.06.2022. The ECP shall decide the issues within one month, as per law.

(JAWAD HASSAN)
JUDGE

Approved for Reporting

JUDGE

ANNEX-A

I N D E X

Sr.No.	Number of Writ Petition
1	W.P.No.24862 of 2022.
2	W.P.No.26439 of 2022.
3	W.P.No.24200 of 2022
4	W.P.No.24654 of 2022.
5	W.P.No.26801 of 2022.
6	W.P.No.26163 of 2022.
7	W.P.No.25192 of 2022.
8	W.P.No.25337 of 2022.
9	W.P.No.24286 of 2022.
10	W.P.No.24434 of 2022.
11	W.P.No.25166 of 2022.
12	W.P.No.24582 of 2022.
13	W.P.No.24886 of 2022.
14	W.P.No.25287 of 2022.
15	W.P.No.25288 of 2022.
16	W.P.No.24945 of 2022.
17	W.P.No.25296 of 2022.
18	W.P.No.24560 of 2022.
19	W.P.No.25340 of 2022.
20	W.P.No.25374 of 2022.
21	W.P.No.25035 of 2022.
22	W.P.No.25308 of 2022.
23	W.P.No.24647 of 2022.
24	W.P.No.25090 of 2022.
25	W.P.No.25175 of 2022.
26	W.P.No.25225 of 2022.
27	W.P.No.24925 of 2022.
28	W.P.No.25115 of 2022.
29	W.P.No.26307 of 2022.
30	W.P.No.26317 of 2022.
31	W.P.No.26501 of 2022.
32	W.P.No.26406 of 2022.
33	W.P.No.26628 of 2022.
34	W.P.No.21859 of 2022.
35	W.P.No.25454 of 2022.
36	W.P.No.25617 of 2022
37	W.P.No.25606 of 2022
38	W.P.No.25622 of 2022.
39	W.P.No.25539 of 2022.
40	W.P.No.25767 of 2022.
41	W.P.No.25559 of 2022.
42	W.P.No.19150 of 2022

43	W.P.No.18894 of 2022.
44	W.P.No.19348 of 2022.
45	W.P.No.20756 of 2022.
46	W.P.No.21052 of 2022.
47	W.P.No.22657 of 2022.
48	W.P.No.22729 of 2022.
49	W.P.No.23503 of 2022
50	W.P.No.23497 of 2022.
51	W.P.No.23889 of 2022
52	W.P.No.23900 of 2022.
53	W.P.No.25032 of 2022.
54	W.P.No.25026 of 2022.
55	W.P.No.25662 of 2022.
56	W.P.No.25635 of 2022
57	W.P.No.25629 of 2022.
58	W.P.No.21253 of 2022.
59	W.P.No.25671 of 2022.
60	W.P.No.25529 of 2022.